

**State of New Hampshire
Board of Mental Health Practice
Concord, New Hampshire 03301**

In the matter of:

Jennifer K. Savage
LCMHC License #1130
(Misconduct Allegations)

Docket No.: 2024-MHP-006

SETTLEMENT AGREEMENT

In order to avoid the delay and expense of further proceedings and to promote the best interests of the public and the mental health profession, the New Hampshire Board of Mental Health Practice ("Board") and Jennifer K. Savage, LCMHC ("Respondent"), a licensee of the Board, do hereby stipulate and agree to resolve certain allegations of professional misconduct now pending before the Board according to the following terms and conditions:

1. Pursuant to RSA 330-A:28 and Mental Health Practice Administrative Rules ("Mhp") 207, the Board has jurisdiction to investigate allegations of professional misconduct committed by mental health practitioners. Pursuant to RSA 310:10, VIII, the Board may, at any time, dispose of such allegations by settlement and without commencing a disciplinary hearing.
2. The Board first granted Respondent a license to practice as a Licensed Clinical Mental Health Counselor ("LCMHC") in the State of New Hampshire on or about August 10, 2015. Respondent holds license number 1130, which expires August 31, 2025.
3. In August 2023, Respondent submitted a renewal application for her license and indicated that she had completed the required 40 hours of continuing education units ("CEUs"), when she had not.
4. In September 2023, Respondent was selected for an audit of CEU compliance.
5. Respondent was unable to produce documentation to support the credits she indicated were

complete.

6. In response to the allegations, the Board voted to initiate disciplinary proceedings against Respondent.

7. Respondent stipulates to the following facts;

- A. Respondent is a licensee of the Board having LCMHC License No. 1130.
- B. Respondent has no prior history of misconduct or professional discipline.
- C. Respondent submitted a renewal application on or about August 7, 2023, indicating she had completed all required CEUs, when she in fact had not completed them.
- D. On or about January 22, 2024, Respondent submitted evidence of completing 43 CEUs.

6. The Board finds that Respondent committed the acts as described above and concludes that, by engaging in such conduct, Respondent violated RSA 330-A:27 II, (i) and Mhp 402.01.

7. Respondent acknowledges that this conduct constitutes grounds for the Board to impose disciplinary sanctions against Respondent's mental health practitioner license in the State of New Hampshire.

8. Respondent consents to the Board imposing the following discipline, pursuant to RSA 310:12:

- A. Respondent is **REPRIMANDED**.
- B. Respondent is assessed an **ADMINISTRATIVE FINE** in the amount of two hundred fifty dollars (\$250.00). Respondent shall pay this fine in full within forty-five (45) days of the effective date of this Settlement Agreement, as defined further below, by delivering a money order or bank check, made payable to "Treasurer,

State of New Hampshire,” to the Board’s office at 7 Eagle Square, Concord, New Hampshire, 03301. No separate invoice shall issue. Payment shall include a copy of this Settlement Agreement or a note including the docket number and indicating the payment is made in compliance with a settlement agreement with the Board.

9. The Board may consider Respondent’s compliance with the terms and conditions herein in any subsequent proceeding before the Board regarding Respondent’s license.
10. Respondent’s breach of any terms or conditions of this *Settlement Agreement* shall constitute unprofessional conduct pursuant to RSA 330-A:27, II (c), and a separate and sufficient basis for further disciplinary action by the Board.
11. The Board may consider Respondent’s compliance with the terms and conditions herein in any subsequent proceeding before the Board regarding Respondents’ licenses.
12. The Board agrees that in return for Respondent executing this Settlement Agreement, the Board will not proceed with the formal adjudicatory process based upon the facts described herein. However, the Board may consider this misconduct as evidence of a pattern of conduct in the event that similar misconduct is proven against Respondent in the future. Additionally, the Board may consider the fact that discipline was imposed by this Settlement Agreement as a factor in determining appropriate discipline should any future misconduct be proven against Respondent in the future.
13. This Settlement Agreement shall become a permanent part of the Respondent’s file, which is maintained by the Board as a public document.
14. Respondent voluntarily enters into and signs this Settlement Agreement and states that no promises or representations have been made other than those terms and conditions expressly stated herein.

15. Respondent understands that entering into this Settlement Agreement is a final act and not subject to reconsideration, judicial review, or appeal.
16. Respondent agrees to support the adoption of this agreement by the Board.
17. Respondent understands that this agreement is an adverse action against Respondent's license and will be reported to all relevant jurisdictions.
18. Respondent has had the opportunity to seek and obtain the advice of an attorney of his choosing in connection with his decision to enter into this Settlement Agreement.
19. Respondent is not under the influence of any drugs or alcohol at the time s/he signs this Settlement Agreement.
20. Respondent understands that the Board must review and accept the terms of this Settlement Agreement. If the Board rejects any portion, the entire Settlement Agreement shall be null and void. Respondent specifically waives any claims that any disclosures made to the Board during its review of this Settlement Agreement has prejudiced Respondent's right to a fair and impartial hearing in the future if this Settlement Agreement is not accepted by the Board.
21. Respondent certifies that he has read this document titled Settlement Agreement. Respondent understands that s/he has the right to a formal adjudicatory hearing concerning this matter and that at said hearing he would possess the right to confront and cross-examine witnesses, to call witnesses, to present evidence, to testify on his own behalf, to contest the allegations, to present oral argument, and to appeal to the courts. Further, Respondent fully understands the nature, quality and dimensions of these rights. Respondent understands that by signing this Settlement Agreement, s/he waives these rights as they pertain to the misconduct described herein.

22. This Settlement Agreement shall take effect as an Order of the Board on the date it is signed by an authorized representative of the Board and shall become final after 30 days pursuant to Plc 205.04.

FOR RESPONDENT

Dated: April 11, 2024

Jennifer Savage, LCMHC
Jennifer Savage, LCMHC
Respondent

FOR THE BOARD

ACCEPTED BY BOARD OF MENTAL HEALTH PRACTICE on this 19 day of April, 2024 (Effective Date).

Date: April 19, 2024

J Webber
(Signature)

J Webber
(Print or Type Name)
Authorized Representative of the
Board of Mental Health Practice

